

		The parties do not dispute that Plaintiff's opposition was not properly served on Defendants. Defendants' request for a continuance is granted. No later than August 5, 2026, Plaintiff shall file a proof of service showing Plaintiff's opposition was properly served on Defendants. Defendants may serve and file a reply no later than August 11, 2026. The hearing on Defendants' demurrer is continued to September 2, 2026, at 10:00 AM in Department N18. Defendants shall give notice.
8.	2025-1528928 Handy vs. Exodus Cry, Inc.	Defendant Exodus Cry, Inc.'s demurrer to plaintiff Bridget Handy's first amended complaint ("FAC") is continued to September 9, 2026, for Defendant to serve Plaintiff by a proper method and file a sufficient proof of service. [ROA # 44.] <u>Facts</u> Plaintiff is a self-represented litigant. [See First Amended Complaint (ROA #38).] Defendant purportedly served its demurrer on Plaintiff by email. [See Demurrer POS (ROA #44).] The proof of service does not show the email address from which service was purportedly made and it is executed in Florida and sworn under penalty of perjury under the laws of Florida. <u>Discussion</u> A self-represented litigant may not be served by email unless she expressly consents. Express consent to electronic service is accomplished either by (i) serving a notice on all other parties and filing it with the court, or (ii) by "[m]anifesting affirmative consent through electronic means with the court or the court's electronic filing service provider, and concurrently providing the party's electronic address with that consent for the purpose of receiving electronic service. The act of electronic filing shall not be construed as express consent." Code Civ. Proc. § 1010.6(c)(3); see CRC 2.251(b)(1). As far as what is in the court file, Plaintiff has not served a notice of express consent to service by email. Nor is there any record that Plaintiff registered with for electronic service through an electronic service provider. See CRC 2.251(b)(1)(B)(i). Otherwise, any other way to consent is an affirmative notice either served or filed. See CRC 2.251(b)(1)(A), (b)(1)(B)(ii).

		Finally, the proof of service itself does not comply with Code of Civil Procedure sections 1013(b)(1) and 2015.5.
9.	2026-1542680 Pi-Fang Yang, trustee of YPF Trust vs. Bingham	The unopposed motion by Plaintiff Pi-Fang Yang, as trustee of YPF Trust (“Plaintiff”), for preliminary or temporary injunction, is granted. Plaintiff’s request for judicial notice (ROA 46) is granted. (Evid. Code, § 452, subd. (c), (d); see also <i>River’s Side at Washington Square Homeowners Assn. v. Superior Court</i> (2023) 88 Cal.App.5th 1209, 1220, fn. 3 [trial court could take judicial notice of recorded CC&Rs].) Plaintiff moves for a preliminary injunction granting her and her vendors “unimpeded access” to the real property, commonly known as 26701 Quail Creek, #209, Laguna Hills, California 92656 (the “Property”), and temporarily excluding Defendants Jayson Bingham (aka Jayson Mancia) and Angie Abad (aka Angie Mancia) while Plaintiff makes repairs and to remediate mold in the Property. Code of Civil Procedure section 526, subdivision (a), sets forth the conditions upon which a preliminary injunction may be granted, including: “(1) When it appears by the complaint that the plaintiff is entitled to the relief demanded, and the relief, or any part thereof, consists in restraining the commission or continuance of the act complained of, either for a limited period or perpetually”; “(2) When it appears by the complaint or affidavits that the commission or continuance of some act during the litigation would produce irreparable injury to a party to the action; or “(4) When pecuniary compensation would not afford adequate relief.” To obtain a preliminary injunction, a plaintiff ordinarily is required to present evidence of the irreparable injury or interim harm that it will suffer if an injunction is not issued pending an adjudication of the merits. [Citation.]” (<i>White v. Davis</i> (2003) 30 Cal.4th 528, 554, emphasis in original.) The moving party bears the burden of showing all elements necessary to support the issuance of a preliminary injunction. (<i>O’Connell v. Superior Court</i> (2006) 141 Cal.App.4th 1452, 1481.) A landlord a statutory right to entry of a dwelling unit. (Civ. Code, § 1954.) Relevant, here, a landlord may enter the “dwelling unit” under the following circumstances: (1) In case of emergency. (2) To make necessary or agreed repairs, decorations, alterations or improvements, supply necessary or agreed services, or exhibit the dwelling unit to prospective or actual purchasers, mortgagees, tenants, workers, or contractors or to make an inspection pursuant to subdivision (f) of Section 1950.5. (4) Pursuant to court order. (Civ. Code, § 1954, subd. (a).)